

Court No. - 34

Case :- WRIT - C No. - 13073 of 2020

Petitioner :- Sri Kedar Nath

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Jai Prakash Prasad, Arunesh Singh

Counsel for Respondent :- C.S.C.

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Ajay Bhanot, J.

The petitioner herein is aggrieved by the assessment of electricity dues and the consequent recovery notice issued on 04.07.2020.

He also seeks a writ of mandamus commanding the respondents to allow him to deposit the recovery amount in easy instalments.

Sri Baleshwar Chaturvedi, learned counsel for the respondent nos. 2 to 4 is present. He submits that effective remedy before the petitioner is to approach the concerned officer by invoking the provisions of Clause 6.1 or 6.4 of the Electricity Supply Code, 2005, as he may be advised.

In our considered opinion, the relief sought in the writ petition cannot be granted, inasmuch as factual enquiry cannot be done in the limited scope of Article 226 of the Constitution of India.

It would, therefore, be appropriate that the petitioner may approach the competent authority under the aforesaid provisions.

The writ petition is **dismissed** accordingly.

Order Date :- 31.8.2020

Pravin